

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED**

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Thursday, July 23, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Thursday, July 23, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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22CV-04212	Dorothy Jimenez vs American Honda Motor Co., Inc.
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Status Conference

Appearance required. Appear to address status of arbitration proceedings.

24CV-00482	Williamsburg National Insurance Company vs Alejandro Sanchez, Senior, et al.
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Status Conference

Appearance required. The Court signed the order approving the compromise of the minor's claim on July 20, 2026. Although a declaration from Ryan McKim was filed on July 16, 2026, it addresses counsel's efforts to ensure an order was lodged for the minor's compromise, but does not indicate the status of the settlement. Appear to address when this matter will be dismissed pursuant to the settlement agreement.

25CV-06368

Austine Joseph vs Ted Brase, et al.

Motion to be Relieved as Counsel

The unopposed motion by attorney John F. Christl and the law firm of Sweet James, LLP, to be relieved as counsel for plaintiff Austine Joseph is GRANTED.

The Court will sign the order, on mandatory form MC-053, lodged on June 26, 2026. The order will be effective upon the filing of the proof of service of the signed order upon the client.

26CV-00869

Javier Alvarado vs Central Valley Opportunity Center, Incorporated

Motion to Compel Defendant Central Valley Opportunity Center Incorporated's Response to Plaintiff's Special Interrogatory, Set One, No. 1, and Request for Monetary Sanctions Against Defendant in the Amount Of \$4,110.00

Continued from July 16, 2026.

The motion to compel a response to Special Interrogatory, Set One, No. 1, is DENIED as premature

Exhibit C, attached to the Declaration of Young, establishes that Defendant had until June 5, 2026, to provide discovery responses. (Young Decl., ¶ 5, Exhibit C, p. 3.) Plaintiff filed their motion on June 4, 2026. As this is prior to the June 5, 2026, due date, Plaintiff's motion is premature. If Defendant served responses on June 5, 2026, which is alleged in Defendant's opposition, the responses would be timely, and this motion would be unnecessary.

Motion for Judgment on the Pleadings

Continued from July 16, 2026.

The motion for judgment on the pleadings is DENIED.

The request for judicial notice is DENIED as to Exhibits A, B, and E, as the truth or interpretation of the documents is disputed.

The request for judicial notice is GRANTED as to Exhibits C and D, but only as to the existence of the documents and not the truth or interpretation of the contents as they are disputed.

The request for judicial notice of Defendant's and Plaintiff's counsel's websites is DENIED as irrelevant.

Plaintiff's objections to the Declaration of Bryan B. Miller are OVERRULED. Plaintiff's objections to the Declaration of Custodian of Records are OVERRULED.

“A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed.” (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999; see also *Templo v. State of California* (2018) 24 Cal.App.5th 730, 735 [motion for judgment on the pleadings is equivalent to a demurrer].) “[J]udgment on the pleadings must be denied where there are material factual issues that require evidentiary resolution.” (*Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216.)

Defendant contends that the prior class settlement in *Rodriguez v. Central Valley Opportunity Center, Incorporated*, Merced Superior Court Case No. 22CV-01358, bars this action based on res judicata. In support, Defendant requests judicial notice of certain documents, that if the truth or interpretation of the matter asserted therein is accepted, would prove Plaintiff’s claims are precluded. Of those documents, the truth and interpretation of the contents of Exhibits A, B, and E are disputed by Plaintiff. Further, the interpretation and legal effect of Exhibits C and D are also disputed by Plaintiff. These are factual disputes that require evidentiary resolution.

Here, accepting Plaintiff’s allegations as true, Plaintiff has alleged facts sufficient to constitute each cause of action. Plaintiff alleges he was employed through October 20, 2023. Plaintiff alleges he was a non-exempt employee entitled to wages, overtime, meal and rest period premiums, unreimbursed expenses, and penalties. Plaintiff alleges Defendant failed to pay all wages, failed to provide compliant meal and rest periods, failed to pay final wages, failed to reimburse business expenses, and engaged in unlawful business practices. As Defendant’s evidence rebutting those allegations will not be considered for the motion for judgment on the pleadings as they require evidentiary resolution, those allegations are sufficient at this stage.

26CV-02336 Gemma Quintero vs Aniah Jenkins

Order to Show Cause Re: Restraining Order

Appearance required. All parties have appeared in this action.

26CV-03091 Vanessa Mercado vs Danielle Navarro

Order to Show Cause Re: Restraining Order

Appearance required. Proof of timely personal service of the notice of hearing on Respondent was filed with the court on July 8, 2026.

26CV-03428 Angel Rivas vs Jessica Lynn Pieri

Petition for Minor’s Compromise

The petition for approval of the minor’s compromise is GRANTED.

The Court will sign the orders lodged on June 24, 2026.

A status conference is set for November 18, 2026, at 8:15 a.m. in Courtroom 8, for confirmation of deposit of the minor's funds into the blocked account.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Judge Pro Tem Peter MacLaren
Courtroom 9

627 W. 21st Street, Merced

Thursday, July 23, 2026
10:00 a.m.

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Case No.	Title / Description
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25CV-06342	TD Bank USA, N.A. vs. Joseph Ragus
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Order to Show Cause Why Sanctions Should Not Be Imposed on Plaintiff's Counsel

Appear to show cause why monetary sanctions should not be imposed on Plaintiff's counsel of record for failing to attend the case management conference on May 8, 2026, and failure to file a case management conference statement.

Case Management Conference

Appearance required.

26CV-00583	[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]
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Motion to Set Aside Default and Default Judgment

Defendant's motion to set aside the default and vacate the default judgment is DENIED due to lack of notice. Defendant has not filed proof of service to show Plaintiff received notice of the motion and no written opposition has been filed by Plaintiff indicating waiver of notice. Even if Defendant had provided notice to Plaintiff, the Court notes

Defendant has not met his burden of showing that his failure to file a timely response in this action to prevent the entry of default and default judgment in April 2026 was due to his “mistake, inadvertence, surprise, or excusable neglect.” (See Code Civ. Proc., § 473, subd. (b).) The Court further notes that the clerk’s judgment by default entered on April 17, 2026, was for possession of the premises only and did not include an award of money damages.

26CV-02479

[Parties’ names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Restraining Orders
Hon. Jennifer O Trimble
Courtroom 12

1159 G Street, Los Banos

Thursday, July 23, 2026
11:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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Case No.	Title / Description
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26CV-03646	Maria del Carmen Gomez Lopez vs. Celene Cabrera
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Order to Show Cause Re: Restraining Order

Appearance required.

26CV-02269	Maria Velasquez vs. Sylvia Lechuga
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Order to Show Cause Re: Restraining Order

Appearance required.

26CV-03653	Jasmine Saavedra vs. Crystal Martinez Reyes
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Order to Show Cause Re: Restraining Order

Appearance required.